

TENTATIVE RULING(S) FOR June 23, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2526692

Babineaux vs Davis

TENTATIVE RULING(S):

Unopposed Demurrer and Motion to Strike Plaintiffs' First Amended Complaint ("FAC")

Having reviewed and considered Defendants' submitted papers, the Court rules as follows:

- The Court grants Defendants' Request to Take Judicial in part. The Court takes judicial notice of the Quit Claim Deed as to its existence, but not the truth of the matter stated therein.
- The Court finds Plaintiffs' FAC, as a whole, uncertain and unintelligible. Defendants correctly argue that the FAC failed to specify the alleged conduct of each Defendant, the

specific terms of the alleged contracts, and the factual basis of each cause of action. CCP section 430.10(f).

- Demurrer is sustained, without leave to amend, as to Defendant Gary Davis.
- Demurrer is sustained, with 10 days leave to amend, as to Plaintiffs' "Conspiracy to Commit Fraud," Specific Performance, Breach of Contract, Fraud, Unjust Enrichment/Quantum Meruit, and Quiet Title causes of action. CCP section 430/10(e).
Some of these causes of action are redundant. The FAC lacks clarity and is unintelligible.
- The Court deems the Motion to Strike moot in light of the Court's ruling on the demurrer to the FAC.

The Court notes that this would be Plaintiffs' third opportunity to cure the various defects in their complaint. The Court is not likely going to give further leave to amend if the legal deficiencies are not addressed.

A party appearing in pro per is not entitled to any greater privileges or time than that accorded attorneys. (*See, e.g., People v. Sherrod* (1997) 59 Cal.App.4th 1168.) Indeed, pro per parties are "to be treated like any other party and [are] entitled to the same, but no greater consideration, than other litigants and attorneys." (*Barton v. New United Motor Manufacturing, Inc.* (1996) 43 Cal.App.4th 1200, 1210.) "A litigant has a right to act as his own attorney, 'but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts, otherwise, ignorance is unjustly rewarded.'" (*Doran v. Dreyer* (1956) 143 Cal.App.2d 289, 290 [*citations omitted*].) Therefore, the pro per litigant should not be given any special consideration because he or she is self-represented. (*City of Riverside v. Horspool* (2014) 223 Cal.App.4th 670, 680.)